

Secure tenancy agreement

Social housing tenancy granted by the London Borough of Southwark ("the Council") under section 79 of the Housing Act 1985 and in accordance with the Council's Tenancy Strategy and the scheme of allocations under Part VI of the Housing Act 1996.

Reference: TEN-SWK-2018-04412 · Date of agreement: 12 September 2018 · Tenant Handbook edition: 2018/v3 (as varied)

Particulars of the tenancy

The Landlord	The Mayor and Burgesses of the London Borough of Southwark, of Housing Solutions, 160 Tooley Street, London SE1 2QH
The Tenant	Ms Crystal Bello (sole tenant)
The Property	Flat 38 Westwood House, Tilman Estate, Lambeth Road, London SE1 7QF
Type of tenancy	Secure tenancy under Part IV of the Housing Act 1985 (social rented)
Tenancy commencement	Wednesday 12 September 2018
Term	Periodic, weekly, commencing on a Monday, continuing until ended in accordance with clause 13
Net rent	£124.86 per week (social rent set under the Government's rent standard)
Service charge	£18.42 per week
Total weekly charge	£143.28 per week (Mondays in advance)
Rent account ref	RA-1140-04412
Number of bedrooms	2 (Bedroom 1 and Bedroom 2)
Permitted occupants	The Tenant and the Tenant's two dependent children, namely a child born 23 February 2020 and an older sibling born 22 March 2016
Council tax band	Band B (informational only)
Property reference	PRP-WW-038
Neighbourhood Housing Office	Tilman Estate Housing Office, Lambeth Road, SE1 6QR
Tenancy officer	S. Marquand, Neighbourhood Housing Officer

The Council and the Tenant have agreed to enter into this Agreement on the terms set out below and in the Council's published Tenant Handbook (as may be varied from time to time under section 103 of the Housing Act 1985). Where the terms of this Agreement and the Tenant Handbook differ, the terms of this Agreement prevail.

1. Definitions and interpretation

1.1 In this Agreement, the following expressions have the meanings set out below:

"the Council"	the Mayor and Burgesses of the London Borough of Southwark, the landlord under this Agreement
"the Tenant"	the person(s) named above as Tenant
"the Property"	the dwelling described in the Particulars together with any garden, outbuildings, fixtures and fittings let with it

"the Common Parts"	the stairwells, lifts, walkways, bin stores, refuse chutes, drying areas, internal corridors and any other parts of the building shared by occupants
"Members of the Tenant's household"	any person living with the Tenant at the Property whether or not they are a relation, including children, lodgers and any visitor staying for more than 28 consecutive days
"HHSRS"	the Housing Health and Safety Rating System set out under Part 1 of the Housing Act 2004
"Repair Response Times"	the Council's published target response times for repairs as may be updated from time to time (currently: emergency ≤24 hours; urgent ≤5 working days; routine ≤20 working days)

1.2 The headings in this Agreement are for convenience only and do not affect its interpretation.

1.3 A reference to a statute or statutory provision is a reference to it as amended, re-enacted or replaced from time to time.

2. Grant of tenancy

2.1 In consideration of the rent payable and the Tenant's obligations in this Agreement, the Council grants the Tenant a secure tenancy of the Property from the commencement date for so long as the conditions in Part IV of the Housing Act 1985 continue to be met.

2.2 The tenancy is granted on the terms set out in this Agreement, the Tenant Handbook and the Council's published policies on allocations, repairs, anti-social behaviour, and tenancy management.

2.3 The Council retains rights of way, drainage and service over the Property in favour of itself and other occupants of Westwood House and the Tilman Estate.

3. Rent, service charge and other payments

3.1 The Tenant must pay the rent and service charge weekly in advance, each Monday, to the rent account quoted in the Particulars or by any other payment method approved by the Council from time to time.

3.2 The Council may review the rent and service charge annually in accordance with section 24 of the Housing Act 1985, the Government's rent standard and the Council's rent-setting policy. The Council will give the Tenant not less than four weeks' written notice of any change.

3.3 The service charge contributes to the cost of providing services to the Common Parts including but not limited to: cleaning, lighting and electricity to communal areas, lift maintenance, communal aerial, grounds maintenance, refuse and recycling provision, and door-entry systems.

3.4 Where the Tenant is entitled to assistance with rent (e.g. Universal Credit housing element or Housing Benefit) it remains the Tenant's responsibility to ensure that the rent account is in credit.

3.5 Rent arrears may be recovered by the Council, including by way of possession proceedings on Ground 1 of Schedule 2 to the Housing Act 1985, after due notice.

4. The Council's obligations

Repair and condition

4.1 The Council will keep in repair the structure and exterior of the Property (including drains, gutters, external pipes, walls, roofs, windows and external doors) in accordance with section 11 of the Landlord and Tenant Act 1985.

4.2 The Council will keep in repair and proper working order the installations in the Property for the supply of water, gas, electricity and sanitation, and for space and water heating.

4.3 With effect from 20 March 2020, and for the remainder of the tenancy, the Council will ensure that the Property is fit for human habitation in accordance with section 9A of the Landlord and Tenant Act 1985 (as inserted by the Homes (Fitness for Human Habitation) Act 2018), including freedom from damp, adequate ventilation, freedom from Category 1 hazards under the HHSRS, and a reasonable internal arrangement.

4.3A The Council will comply with the prescribed timescales for investigating and remedying hazards (including damp and mould) set out in section 10A of the Landlord and Tenant Act 1985 (Awaab's Law) and any associated regulations made under that section, once those provisions come into force in respect of this tenancy.

4.4 The Council will respond to repair requests in accordance with the Repair Response Times. Where the Council is unable to meet a target response time the Tenant may be entitled to compensation under the Right to Repair Regulations 1994 (see clause 11).

Communal services

4.5 The Council will keep the Common Parts in reasonable repair, lit and reasonably clean.

4.6 The Council will maintain the lifts, refuse chutes and door-entry system serving the Property and will respond to faults reported by the Tenant.

Quiet enjoyment

4.7 The Council will allow the Tenant quietly to enjoy the Property without unlawful interruption by the Council, save in respect of access rights properly exercised under clause 6 below.

Insurance

4.8 The Council will insure the building and the Common Parts against fire and other usual perils. The Council does not insure the Tenant's contents and strongly recommends that the Tenant takes out home contents insurance (the Council's Tenant Contents Insurance scheme is available on request).

Information and consultation

4.9 The Council will consult the Tenant in accordance with section 105 of the Housing Act 1985 on matters of housing management which are likely to affect the Tenant substantially.

4.10 The Council will publish a Tenant Handbook and supply a copy to the Tenant on request and free of charge.

5. The Tenant's obligations

Rent and occupation

5.1 The Tenant must pay the rent and service charge in accordance with clause 3.

5.2 The Tenant must use the Property as their only or principal home throughout the tenancy.

5.3 The Tenant must not part with possession of the whole of the Property and must not sub-let the whole of the Property. Sub-letting part of the Property requires the Council's prior written consent, which will not be unreasonably withheld.

5.4 The Tenant must inform the Council promptly of any change in the household and provide such information as the Council reasonably requires.

Care of the Property

5.5 The Tenant must take reasonable care of the Property and its fixtures and fittings (including those listed in Schedule 1) and must not cause damage to them.

5.6 The Tenant must keep the interior of the Property in reasonable decorative order. Decoration is the Tenant's responsibility, save for redecoration following remedial works carried out by the Council.

5.7 The Tenant must keep the Property adequately heated and ventilated to a reasonable standard and must follow reasonable guidance issued by the Council on reducing condensation in the home. Compliance with such guidance does not relieve the Council of its obligations under clause 4 above.

5.8 The Tenant must dispose of refuse and recycling through the facilities provided and must not leave waste in the Common Parts.

Reporting repairs and giving access

5.9 The Tenant must report to the Council, as soon as reasonably practicable, any disrepair, defect or hazard for which the Council is responsible under clause 4.

5.10 The Tenant must allow the Council and its contractors reasonable access to the Property on at least 24 hours' written notice (or, in an emergency, without notice) to: inspect the condition of the Property; carry out repairs and improvement works; service or replace gas, electrical or other installations; carry out statutory inspections including the annual gas safety check.

Anti-social behaviour

5.11 The Tenant, members of the Tenant's household, and the Tenant's visitors must not engage in conduct which causes or is likely to cause a nuisance or annoyance to any person residing, visiting or otherwise engaging in lawful activity in the locality, including but not limited to: noise nuisance; verbal abuse, threats or harassment; domestic abuse; drug dealing; or any criminal activity at, or in the locality of, the Property.

5.12 The Tenant must not discriminate against, harass or victimise any person on grounds protected by the Equality Act 2010.

5.13 Breach of clauses 5.11 or 5.12 is a serious breach of this Agreement and may lead to possession proceedings on Grounds 2 or 2A of Schedule 2 to the Housing Act 1985.

Alterations and improvements

5.14 The Tenant must not make any alterations, additions or improvements to the Property without the Council's prior written consent under section 97 of the Housing Act 1985. Consent will not be unreasonably withheld.

5.15 The Tenant must not erect any aerial, satellite dish or external structure without consent.

Pets and animals

5.16 The Tenant may keep one (1) domestic pet at the Property with the Council's prior written consent (not to be unreasonably withheld). Consent may be subject to conditions and may be withdrawn if the animal is causing a nuisance.

5.17 The Tenant must not keep livestock or any animal listed under the Dangerous Wild Animals Act 1976 or banned under the Dangerous Dogs Act 1991.

Use of Common Parts

5.18 The Tenant must not obstruct the Common Parts (including by leaving bicycles, prams, bin bags or other items in stairwells or corridors) or use them other than for access.

5.19 The Tenant must not smoke or vape in the Common Parts.

Business use

5.20 The Tenant must not use the Property for any trade or business without the Council's prior written consent.

Health, safety and statutory compliance

5.21 The Tenant must not interfere with smoke detectors, carbon monoxide detectors, sprinklers or any other fire safety provision installed at the Property or in the Common Parts, and must test smoke alarms periodically as recommended.

5.22 The Tenant must not store flammable liquids (other than reasonable household quantities) at the Property.

6. Right of access

6.1 The Council and its authorised contractors may enter the Property at reasonable hours and on at least 24 hours' written notice for any of the purposes set out in clause 5.10. In an emergency, access may be obtained without notice and, if necessary, by forced entry, in which case the Council will make good any damage caused at its own expense.

6.2 The Council will carry out an annual gas safety check in accordance with the Gas Safety (Installation and Use) Regulations 1998. The Tenant must provide reasonable access for this purpose.

7. Variation of terms

7.1 The Council may vary the terms of this Agreement only in accordance with sections 102 and 103 of the Housing Act 1985, by serving a notice of variation on the Tenant containing the proposed variation and giving the Tenant a reasonable opportunity to comment.

7.2 Variation of the rent and other charges is governed by clause 3 and not by this clause.

8. Succession, assignment and lodgers

8.1 On the death of the Tenant, the tenancy may pass to a qualifying successor in accordance with sections 87 to 90 of the Housing Act 1985, namely: (a) the Tenant's spouse or civil partner, if occupying the Property as their only or principal home at the time of death; or (b) another member of the Tenant's family (as defined in section 113 of the Housing Act 1985) who has resided with the Tenant for at least 12 months immediately before death.

8.2 Only one statutory succession is permitted under section 87 of the Housing Act 1985.

8.3 The Tenant may assign the tenancy only by way of (a) a mutual exchange under section 92 of the Housing Act 1985, (b) an assignment to a person who would be qualified to succeed if the Tenant died immediately before the assignment, or (c) under an order of the court made under the Children Act 1989, the

Family Law Act 1996 or the Matrimonial Causes Act 1973.

8.4 The Tenant may take in lodgers without seeking consent. The Tenant must inform the Council of any change in occupancy and ensure that any lodger complies with the conditions of this Agreement.

9. Right to Buy and other statutory rights

9.1 The Tenant may have the Right to Buy the Property under Part V of the Housing Act 1985 after a qualifying period. Information on eligibility, the application process, and discount levels is available from the Council's Home Ownership Team.

9.2 The Tenant has the Preserved Right to Buy in the circumstances set out in section 171A of the Housing Act 1985.

9.3 The Tenant has the right to be consulted on matters of housing management (section 105), the right to exchange (section 92), the right to take in lodgers and to sub-let with consent (section 93), and the right to carry out improvements with consent and to claim compensation for qualifying improvements (sections 96 to 99B).

10. Right to Repair scheme

10.1 The Right to Repair Regulations 1994 give the Tenant the right to have certain qualifying repairs carried out within prescribed time limits. The qualifying repairs and time limits are set out in the Tenant Handbook.

10.2 If the Council fails to carry out a qualifying repair within the prescribed time, the Tenant may instruct a second listed contractor and may be entitled to compensation calculated in accordance with the Regulations (currently a minimum of £10 plus £2 for each day's delay, up to a maximum of £50).

11. Ending the tenancy

11.1 The Tenant may end the tenancy by giving the Council not less than four weeks' written notice expiring on a Monday.

11.2 The Tenant must, on or before the date the tenancy ends, return all keys to the Council, leave the Property and any included gardens in a clean and tidy condition, remove all personal belongings, and ensure that all rent and other charges are paid up to date.

11.3 The Council may seek possession only on one or more of the grounds set out in Schedule 2 to the Housing Act 1985 and only after service of a notice of seeking possession in the prescribed form.

11.4 The Council will not seek possession in circumstances which would amount to retaliatory eviction and recognises that a section 11 disrepair claim or a claim under the Homes (Fitness for Human Habitation) Act 2018 does not give the Council grounds for possession.

12. Service of notices

12.1 Any notice required to be given under this Agreement may be served by delivering it by hand, by first-class post, or by email to an email address previously notified in writing by the recipient.

12.2 Notices served by post are deemed served two working days after posting; notices served by email are deemed served on the next working day after sending.

12.3 Notices to the Council should be sent to: Housing Solutions, 160 Tooley Street, London SE1 2QH, or to repairs.requests@southwark.gov.uk for repair-related matters.

13. Complaints, redress and dispute resolution

13.1 If the Tenant is dissatisfied with any aspect of the service provided by the Council, the Tenant may use the Council's two-stage complaints procedure (Stage 1: local resolution; Stage 2: review by the Complaints Resolution Team).

13.2 If a complaint remains unresolved after the Council's internal procedure has been exhausted, the Tenant may refer the matter to the Housing Ombudsman Service in accordance with the Housing Ombudsman's Complaint Handling Code.

13.3 Nothing in this clause affects the Tenant's right to bring civil proceedings under section 11 of the Landlord and Tenant Act 1985, the Homes (Fitness for Human Habitation) Act 2018, or under the Pre-Action Protocol for Housing Conditions Claims (England).

14. Equalities and reasonable adjustments

14.1 The Council will comply with its public sector equality duty under section 149 of the Equality Act 2010 in delivering services under this Agreement and will make reasonable adjustments where required.

15. Data protection

15.1 The Council is the data controller in respect of personal data processed under this Agreement and will process such data in accordance with the UK GDPR and the Data Protection Act 2018. The Council's privacy notice for housing services is available at southwark.gov.uk/privacy.

16. Governing law and jurisdiction

16.1 This Agreement is governed by the law of England and Wales and the parties submit to the exclusive jurisdiction of the courts of England and Wales.

Schedule 1: Inventory of fixtures and fittings

The following fixtures and fittings are included in the letting and are to be kept in good repair by the Council:

Room	Fixtures & fittings included
Kitchen	Fitted base and wall units; stainless-steel sink and drainer with mixer tap; gas hob with 4 burners and electric oven; cooker hood; vinyl floor covering
Bathroom	White suite (WC, basin, bath with shower over); part-tiled walls; extractor fan; chrome towel rail
Bedroom 1 (main)	Built-in single wardrobe; carpeted floor; single-glazed sash window with restrictors; central heating radiator
Bedroom 2 (children's)	Carpeted floor; double-glazed window with restrictors; central heating radiator
Living/dining	Laminate floor covering; uPVC sliding patio door to balcony; two central heating radiators
Hallway	Carpet runner; smoke alarm (mains with battery back-up); intercom door-entry handset

Room	Fixtures & fittings included
Heating	Combination gas boiler (Worcester 25Si or equivalent); thermostatic radiator valves; programmer
Security	Mortice deadlock and night-latch to front door; door spy hole; security chain

Schedule 2: Allocation of repair responsibilities (summary)

This Schedule is a summary only. In the event of any inconsistency with clauses 4 and 5 above or with the statutes referred to in those clauses, the clauses and statutes prevail.

Item	Council	Tenant
Structure and exterior	Yes	No
Roof, gutters and downpipes	Yes	No
External walls and brickwork	Yes	No
Damp proof courses, fitness for habitation	Yes	No
Window frames and glazing	Yes	No
Boiler, gas and water installations	Yes	No
Electrical wiring (consumer unit, sockets)	Yes	No
Communal aerial, intercom, lifts	Yes	No
Internal decoration	No	Yes
Internal floor coverings (Tenant's own)	No	Yes
Light bulbs (within the Property)	No	Yes
Plug-in white goods (Tenant's own)	No	Yes
Toilet seat, plug chains, shower curtain	No	Yes
Locks and keys (other than as a result of theft or council instruction)	No	Yes

Signed as a deed by the parties on the date stated in the Particulars above.

Signed for and on behalf of the Council:

S. Marquand
S. Marquand, Neighbourhood Housing Officer
London Borough of Southwark
Date: 12 September 2018

Witness:

T. Adekunle
T. Adekunle, Tenancy Sustainment Officer
London Borough of Southwark

Signed by the Tenant:

Crystal Bello
Ms Crystal Bello (Tenant)
Address: as in the Particulars above
Date: 12 September 2018

Witness:

M. Owusu
M. Owusu, Friend of the Tenant
Address held on file

End of Agreement. The Tenant should retain this document for the duration of the tenancy. A copy is held by the Council on the tenancy file at the Neighbourhood Housing Office named in the Particulars.